

		“[P]ersons may represent their own interests in legal proceedings but may not ‘practice law [for another] in this State unless [they are] active member[s] of the state bar.” (<i>Drake v. Superior Ct.</i> (1994) 21 Cal. App. 4th 1826, 1830.) Thus, Plaintiff cannot proceed in a PAGA action in pro per. Counsel is ordered to give notice of this ruling.
10	30-2019-01108860 Long Beach Memorial Medical Center vs. Kaiser Foundation Health Plan, Inc.	Defendant and Cross-Complainant Kaiser Foundation Health Plan, Inc.’s (“Kaiser”) Motion to Seal Confidential Portions of Trial Transcript and Confidential Trial Exhibits is GRANTED. “Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court, Rule 2.550(c).) “The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) [t]here exists an overriding interest that overcomes the right of public access to the record; (2) [t]he overriding interest supports sealing the record; (3) [a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) [t]he proposed sealing is narrowly tailored; and (5) [n]o less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, Rule 2.550(d).) “[T]rial courts may redact or seal particular documents to protect private information concerning an overriding privacy interest.” (<i>In re M.T.</i> (2024) 106 Cal. App. 5th 322, 336.) “[I]t is appropriate to seal certain records when those particular records contain highly sensitive . . . personal information about individuals,” including their medical information. (<i>Id.</i>) Overriding interests may also include a substantial probability that movant’s business, competitiveness and privacy rights will be adversely affected if the record is not sealed. (<i>See, e.g., McGuan v. Endovascular Techs., Inc.</i> (2010) 182 Cal. App. 4th 974, 988 [affirming order granting motion to seal documents containing trade secrets]; <i>Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Superior Court</i> (2006) 137 Cal. App. 4th 579, 594 [“Although corporations have a lesser right to privacy than human beings and are not entitled to claim a right to privacy in terms of a fundamental right, some right to privacy exists.”]; <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal. App. 4th 1273, 1286 [noting that sealing is appropriate where “information involves

		confidential matters relating to the business operations of defendant” and “public revelation of these matters would interfere with its ability to effectively compete in the marketplace”].) Here, Kaiser seeks to seal: • 8 trial exhibits containing Kaiser’s paid claims data (including patient personal health information) • 36 trial exhibits containing Kaiser’s letters of agreement (“LOAs”) (6 with nonparty facilities and 30 with MemorialCare facilities) • 21 trial exhibits containing Kaiser’s contracts with non-party hospitals (and related amendments) • Portions of trial transcripts referencing these exhibits (Pimstone Dec., Exs. 1A-1L.) Kaiser has established the criteria set forth in CRC Rule 2.550(d). The court expressly finds that the facts establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. From presiding at the trial, the court is aware that the subject documents contain confidential, sensitive, competitive business information as well as confidential patient personal health information. The issue at trial was the fair reimbursement rate for Kaiser patients treated by defendants. To address this issue it was necessary to explore a range of reimbursement rates paid to other providers and examples of rates paid on particular patient claims. This is the type of information which might, and in this case does, generate the overriding interest necessary to support a sealing order. Plaintiffs opposed this motion arguing that Kaiser failed to preserve the confidentiality of the subject materials and waived its right to seal the subject materials. “Waiver is the intentional relinquishment of a known right after knowledge of the facts.” (<i>Harper v. Kaiser Cement Corp.</i> (1983) 144 Cal. App. 3d 616, 619.) The burden is on the party claiming waiver “to prove it by clear and convincing evidence that does not leave the matter to speculation, and ‘doubtful
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		cases will be decided against a waiver.” (Id.) Plaintiffs have not met this burden. Plaintiffs argue that the court in <i>Pomona Valley Hospital Medical Center v. Kaiser Foundation Health Plan, Inc.</i> (2026) 119 Cal.App.5th 43, denied Kaiser’s motion to seal similar information. However, that court denied the motion to seal based on the following facts: “The court notes that the reporter’s transcript was filed in this court on July 30, 2024. Kaiser took no action around the time of filing, or for more than a year and a half afterward, to seek sealing of the transcript, and only did so after filing of the opinion. Further, the parties’ publicly-filed briefs cited extensively to portions of the reporter’s transcript that Kaiser now asserts should be sealed. Accordingly, the court concludes that any claim that Kaiser may have had that the reporter’s transcript should be sealed has been waived.” (Hayes-Kibreab Dec., Ex. B.) Plaintiffs also rely on <i>Savaglio v. Wal-Mart Stores, Inc.</i> (2007) 149 Cal. App. 4th 588, 598, where the party waived its right to seal records that were publicly filed in appellate court proceedings and were never properly filed under seal at the trial court level. (Id. at 600 [“Wal-Mart could not reasonably think that the trial court had sealed the documents submitted with the writ petitions, because Wal-Mart had not moved for an order sealing the record; had not submitted points and authorities and a declaration justifying sealing; and there was no court order granting the nonexistent motion.”].) The facts here are clearly distinguishable. In this action, Kaiser filed the relevant exhibits “conditionally under seal” and timely filed a motion to seal during trial, but the court declined to address the question of sealing materials until after trial. Kaiser notes that, during trial, when testimony was elicited as to the materials, both Kaiser and Plaintiffs cleared the courtroom of persons not within the scope of the protective order. Kaiser then filed this motion a few months after trial concluded after reviewing the exhibits and court transcripts. Such conduct does not evince a relinquishment of rights. The court finds that under these facts, Kaiser did not waive its right to seal the subject material and has demonstrated an overriding interest warranting sealing of these materials. Kaiser is ordered to give notice of this ruling.
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